

16. 9:00 AM CASE NUMBER: C25-01992
CASE NAME: JUSTIN WANG VS. TESLA, INC
HEARING IN RE: APPLICATION OF JAMES CULLEN EVANS TO APPEAR PRO HAC VICE ON BEHALF OF DEFENDANTS
FILED BY: TESLA, INC
TENTATIVE RULING:

Parties to Appear

17. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by the City of Richmond and Hector Lopez to the complaint. For the reasons set forth, the Court rules as follows: (a) the demurrer to the Complaint in its entirety is **OVERRULED**; and (b) the demurrer to the first through ninth causes of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Mr. Malboubi located on 24th Street in the City of Richmond. (Compl. ¶¶ 2, 3.) (The City represents Mr. Lopez retired as a City planner on August 16, 2025. (MPA ISO Dem. p. 7, fn. 1.))

Mr. Malboubi informed Mr. Lopez he wanted to subdivide the property into "two separate legal units." (Compl. ¶ 3.) Plaintiff alleges he obtained a survey and submitted an application and other paperwork to the City in April 2024. (Compl. ¶ 7.) Mr. Lopez informed him that for a lot split, because all six utility meters were located on one of the proposed parcels, three of the meters would have to be moved to the other proposed parcel so that each of the two properties had its own set of utility boxes. Mr. Malboubi alleges he informed Mr. Lopez by email on May 23, 2024 he wanted instead to proceed with the project as a condominium or townhouse conversion. (Compl. ¶¶ 9-11.)

Plaintiff describes a series of communications with Mr. Lopez, and Plaintiff's submission of proposed deeds, utility easements, and other documents requested by Mr. Lopez. He attaches an email from Mr. Lopez dated November 13, 2024 in which Mr. Lopez stated that, "If no objections are received, the City will issue an approval letter and forward the documents to the County for recordation." (Compl. ¶¶ 12-25.) He alleges a series of additional communications with Mr. Lopez after November 14, 2024. (Compl. ¶¶ 27-34.)

Plaintiff alleges he complied with Mr. Lopez's requests and expected after January 2025 the project would be approved. (Compl. ¶ 35.) He alleges on March 6, 2025, Mr. Lopez sent an email stating that